

July 20, 2026
Dept. 9
Probate Tentative Rulings

17.	25PR0087	THE ESTATE OF MONTY JOHN STAUDINGER
FINAL DISTRIBUTION HEARING		

Letters of Administration were issued on July 11, 2025, granting Petitioner full authority under the Independent Administration of Estates Act.

A Final Inventory and Appraisal was filed on November 19, 2025. At the time the inventory and appraisal was filed, the change of ownership statement with the county recorder or assessor in each county where the decedent owned real property at the time of death, as provided in section 480 of the California Revenue and Taxation Code, was filed.

A First and Final Account and Report of Administrator was filed on June 2, 2026.

Proof of Service of Notice of the hearing on the Petition was filed on July 1, 2026. Vanessa Yvonne Wolfe has filed a request for special notice in this proceeding. A Proof of Service by Mail on Vanessa Yvonne Wolfe was filed on July 1, 2026.

The proposed distribution of the estate includes 100% of decedent's community property be distributed to decedent's surviving spouse and decedent's separate property be distributed equally between decedent's surviving spouse and his two adult children.

Per Local Rule 10.07.12 Petitions for final distribution must include a report of the following:

1. That no federal or California estate taxes are payable or that they have been paid;
2. That income taxes and all other taxes (e.g. supplemental real property taxes or personal property taxes, if any, have been paid or otherwise provided for.

If estate taxes are payable or paid: 1) the petition shall set forth whether said taxes were prorated pursuant to Probate Code section 20100, et seq., or the provisions of the will; and 2) the petition must reflect whether or not there are non-probate assets includable in the gross estate for estate tax purposes.

Petitioner confirms that no federal or California estate taxes are payable and all personal property taxes have been paid. All income taxes due and payable have either been paid or are adequately secured. No personal property taxes are due or payable and all real property taxes have been paid or are adequately secured.

The Petition requests:

1. The administration of this Estate be brought to a close;
2. The First and Final Account and Report of Administrator and Petition thereon be settled, allowed, and approved in all respects as filed;

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3. All of the reported acts and proceedings of Petitioner as Administrator as set forth in this Petition be confirmed and approved;
4. Petitioner be authorized and directed to pay to herself the sum of \$11,309.95 as statutory compensation for ordinary services rendered as Administrator;
5. Petitioner be authorized and directed to pay her attorneys, GOFF LEGAL, PC, the sum of \$11,309.95 as statutory compensation for ordinary services rendered to Petitioner and to the Estate;
6. Petitioner be authorized and directed to reimburse herself for costs in the amount of \$194,466.50 for administrative and other court-approved costs in the establishment and management of the decedent's conservatorship matter;
7. Petitioner be authorized and directed to pay her attorneys, GOFF LEGAL, PC, (1) the sum of \$859.05 as reimbursement of costs advanced on behalf of the Estate; and (2) a sum not to exceed \$650.00 for anticipated costs in connection with the filing and settlement of the First and Final Account and Report of Administrator and Petition for Its Settlement, for Allowance of Statutory Compensation to Administrator and Attorney, For Approval of Costs to Administrator And Attorney, and For Final Distribution and the filing of receipts and discharge;
8. Petitioner be authorized and directed to retain \$2,000.00 in cash from the final distribution for closing expenses of administration and be authorized and directed to deliver the unused part of the reserve to CYNTHIA FAYE STAUDINGER, VANESSA YVONNE WOLFE, and MONTY SHAWN STAUDINGER, without further Court order, after all closing expenses have been paid;
9. Final Distribution of the Estate of the Decedent in Petitioner's possession be made outright in equal shares to CYNTHIA FAYE STAUDINGER, VANESSA YVONNE WOLFE, and MONTY SHAWN STAUDINGER, with distribution occurring after payment of the administrative expenses prayed herein.
10. Any other property of the Decedent or the Estate, located in California, not now known or hereafter discovered that may belong to the Estate or in which the Decedent or the Estate may have any interest shall be distributed as follows: 1) As to community property, outright, one hundred percent (100%) to CYNTHIA FAYE STAUDINGER; and, 2) As to separate property, outright, in equal shares to CYNTHIA FAYE STAUDINGER, VANESSA YVONNE WOLFE, and MONTY SHAWN STAUDINGER, all without need of further court order; and
11. **Upon filing of receipts and the Ex Parte Petition for Discharge, Petition may be discharged and released from all liability that may be incurred thereafter.**

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The Court is inclined to grant the Petition as requested upon receipt of the Order After Hearing pertaining to the reimbursement of costs in the establishment and management of decedent's conservatorship matter.

TENTATIVE RULING #17:

APPEARANCES ARE REQUIRED AT 8:30 A.M. ON MONDAY, JULY 20, 2026, IN DEPARTMENT NINE.

IF A PARTY OR PARTIES WISH TO APPEAR BY ZOOM, PLEASE CONTACT THE COURT AT (530) 621-5867 AND MEETING INFORMATION WILL BE PROVIDED.